



Polygon Pedagogues

Data Protection, Privacy and GDPR Policy

For children, families, staff, tutors and commissioners

Policy owner	Hammad Ahmad, Company Director and Privacy Contact
Approved by	Hammad Ahmad, Company Director
Version	V1.0
Effective from	01 September 2026
Next review due	01 September 2027
Policy category	Data Protection and Privacy
Applies to	All staff, tutors, directors, volunteers, contractors, learners, families and commissioners

Data Protection Contacts

Use these contacts for privacy questions, individual-rights requests, suspected data breaches and concerns about the handling of personal information. A safeguarding concern must still be reported immediately under the Safeguarding and Child Protection Policy.

Role	Contact details
Privacy Contact and Company Director	Hammad Ahmad director@polygonpedagogues.co.uk 07555 854902
Data breach reporting	Report immediately to Hammad Ahmad, Privacy Contact. Do not wait for a full investigation before reporting internally.
Safeguarding and confidential information	Mohsin Abbas, Primary DSL dsl@polygonpedagogues.co.uk 07305 237933
Information Commissioner's Office (ICO)	ico.org.uk 0303 123 1113 The ICO is the UK data protection regulator.

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1. Purpose and scope

This policy explains how Polygon Pedagogues collects, uses, stores, shares and protects personal data. It also provides the organisation's privacy information for learners, parents and carers, staff, tutors, applicants, commissioners, suppliers and people who contact us. It is written to support the UK General Data Protection Regulation (UK GDPR), the Data Protection Act 2018 and the Privacy and Electronic Communications Regulations 2003 (PECR).

Polygon Pedagogues is a mobile and outreach tuition, alternative education and SEMH mentoring provider. We deliver private and commissioned one-to-one or small-group support in homes, schools, libraries, community venues and online. The policy applies to information handled in enquiries, assessments, tuition delivery, attendance and progress recording, welfare and safeguarding, recruitment, invoicing, quality assurance and website activity.

This policy applies to all directors, employees, self-employed tutors, subcontractors, agency staff, consultants and volunteers. It also explains what learners and families can expect from us. It is read alongside the Safeguarding and Child Protection Policy, Safer Recruitment arrangements, contracts, risk assessments and any data-processing agreement for commissioned work.

This document is not a promise that information will never be shared. Information may be shared where it is necessary, lawful and proportionate, including to protect a child or another person from harm. We do not sell personal data or use it for unrelated advertising.

2. Legal framework and key terms

Polygon Pedagogues follows the UK GDPR and the Data Protection Act 2018. It also follows PECR where electronic marketing communications or cookies are used. The policy is reviewed when relevant law, ICO guidance, contractual requirements or the organisation's services change.

Personal data means information relating to an identified or identifiable person. Processing means any operation involving personal data, including collecting, recording, viewing, sharing, storing, deleting or destroying it. A controller decides why and how data is used. A processor handles data on a controller's documented instructions.

Special category data is particularly sensitive personal data, such as health information, racial or ethnic origin, religious or philosophical beliefs, biometric data used for identification, sex life or sexual orientation. Criminal offence data includes DBS information and information about alleged or actual offences. Both need additional safeguards.

A child is anyone under 18. Children's information requires particular care because children may be less aware of the risks, consequences and safeguards involved in the use of their information. We use clear, age-appropriate explanations where we communicate directly with learners.

3. Accountability and roles

For the information we collect to run our own services, Polygon Pedagogues is normally the data controller. The Privacy Contact is Hammad Ahmad, Company Director. Privacy questions, data-rights requests and suspected breaches should be sent to director@polygonpedagogues.co.uk or raised by telephone on 07555 854902.

Polygon Pedagogues does not currently appoint a statutory Data Protection Officer. The Directors keep this under review and will appoint one if the legal conditions requiring a Data Protection Officer

are met. The absence of a statutory DPO does not reduce the organisation's responsibility to comply with data protection law.

For a placement commissioned by a school, local authority or other organisation, the written agreement must state whether Polygon Pedagogues acts as an independent controller, joint controller or processor for each activity. Where we act as a processor, we only process personal data on documented instructions unless the law requires otherwise. We inform the controller where permitted if an instruction appears to conflict with data protection law.

All staff and tutors are responsible for handling data lawfully and securely. They must only access information needed for their role, use approved systems and report a concern, misdirected message, lost device, suspected unauthorised access or other incident immediately to the Privacy Contact.

4. Data protection principles

Polygon Pedagogues applies the UK GDPR principles in every service and process. We process personal data lawfully, fairly and transparently; collect it for specified and legitimate purposes; keep it relevant and limited to what is necessary; take reasonable steps to keep it accurate; retain it for no longer than necessary; and protect it with appropriate security.

We are accountable for being able to demonstrate compliance. This means recording decisions about lawful bases, special-category data, data sharing, retention, suppliers, incidents and high-risk processing where relevant. We review access, records and working practices periodically rather than relying only on written policy.

Privacy is considered at the planning stage of a new system, service, online platform or data-sharing arrangement. We choose the least intrusive, practical method that meets the educational, welfare, contractual or legal purpose.

5. Personal data we collect

The exact information we need depends on the service, the learner's needs and whether the work is privately or commissioner funded. We collect information directly from parents, carers, learners, staff, applicants, commissioners and suppliers. We may also receive relevant information from a school, local authority, social worker, health professional or other agency where that is lawful and appropriate.

Learners and families

- Identity and contact details, including a learner's name, date of birth or age, address, parent or carer details and emergency contacts.
- Education and service information, including year group, subject needs, assessment information, tuition goals, attendance, lesson notes, progress, feedback, appointments, communications and commissioned-placement details.
- Information needed to keep tuition safe and accessible, which may include SEND, disability, health, medication, allergy, mobility, communication, behavioural, mental-health, welfare or safeguarding information.
- Payment and transaction information for private clients, including invoices, payment status and a limited record of the payment method. We do not retain full payment-card details unless processed by an approved payment provider.

Staff, tutors and applicants

- Identity, contact, right-to-work, qualification, employment-history, reference, training, availability, payroll or payment, performance, complaint and conduct information.

- Safer-recruitment and DBS information where a role and the law permit or require it. Access to this information is tightly restricted.

Website and communications

- Enquiry forms, emails, telephone messages, website device and usage information, cookie choices and marketing preferences where used.

6. Lawful bases for processing

Before using personal data, Polygon Pedagogues identifies and documents an Article 6 lawful basis. We do not treat consent as the default basis. The basis may differ depending on the purpose and the relationship with the individual.

Purpose	Lawful basis and rationale
Delivering tuition and administering bookings	Performance of a contract, or steps taken at the request of a parent, carer, learner or commissioning organisation before entering a contract.
Attendance, quality assurance, service improvement and routine communications	Legitimate interests, after considering the individual's rights, expectations and the particular protection due to children's data.
Tax, accounting, employment, safeguarding and other legal requirements	Legal obligation where a specific legal duty applies. Where no duty applies, another appropriate basis is identified and recorded.
Emergency action to protect life	Vital interests where necessary to protect someone's life and the person is unable to provide relevant information or consent.
Optional images, recordings, newsletters, non-essential cookies or optional support information	Consent, where it is freely given, specific, informed and can be withdrawn without disadvantage. Refusal or withdrawal does not affect a core tuition service unless the activity cannot otherwise take place.
Commissioned services	The relevant controller and lawful basis are confirmed in the commissioning agreement. We follow documented instructions where we are acting as a processor.

Where we rely on legitimate interests, we record the purpose, necessity and balancing assessment. We do not rely on legitimate interests for a purpose where a child's interests or fundamental rights override our interests. Individuals have a right to object to processing based on legitimate interests.

7. Special category and criminal offence data

Special category data and criminal offence data are used only where genuinely needed, handled with extra care and subject to restricted access. We identify both an Article 6 lawful basis and a separate Article 9 condition before processing special category data. We document any additional requirements under the Data Protection Act 2018.

Depending on the purpose, relevant conditions may include explicit consent for a clearly optional activity; vital interests in an emergency; establishment, exercise or defence of legal claims; or substantial public interest conditions, including safeguarding of children and individuals at risk, with the necessary safeguards and documentation. Consent is not used where it would be inappropriate to rely on it, especially in an urgent safeguarding situation.

Criminal offence data, including DBS certificate information, is processed only where Article 10 UK GDPR, the Data Protection Act 2018 and the relevant DBS requirements permit it. It is viewed only by authorised decision-makers, used only for suitability or safeguarding purposes, and kept separate from general personnel or tuition records where practicable.

Staff and tutors must not record more health, SEND, welfare, safeguarding or DBS information than is necessary. They must not use diagnostic labels, assumptions or sensitive information in general lesson notes when a factual, proportionate record will meet the purpose.

8. How we use personal data

We use personal data to respond to enquiries; assess whether we can safely and appropriately provide support; arrange, deliver and review tuition; communicate with families and commissioners; keep attendance and progress records; make reasonable adjustments; invoice and manage payments; recruit and manage staff and tutors; meet insurance, legal and regulatory requirements; investigate complaints; and maintain the security of our systems.

We may use relevant welfare, SEND, medical or communication information to plan safe and inclusive tuition. We will not make fully automated decisions that produce legal or similarly significant effects about a learner, family member, applicant or worker without appropriate human involvement and a lawful basis.

We use anonymised or aggregated information where possible for quality assurance, management reporting, service planning or learning from attendance and outcomes. Information that has been genuinely anonymised is no longer personal data.

9. Information sharing and commissioned work

We share personal data only when there is a clear purpose, lawful basis, minimum necessary information and an appropriate recipient. Before sharing, we consider whether the purpose can be met with less information, whether the individual should be told, and whether any safeguarding or legal reason means that telling them would create a risk.

Recipients may include the learner, parent or carer; authorised tutors and staff; an agreed school, local authority, social worker, health professional or commissioning organisation; approved IT, email, document-storage, video-conferencing, website, payment, payroll, insurance or professional-advice provider; auditors; and authorities or regulators where required or permitted by law.

We require processors to provide appropriate security, confidentiality, data-return/deletion and breach-notification arrangements. For commissioned provision, we agree the contact points, reporting route, controller/processor roles, retention expectations and secure method of information exchange before tuition begins wherever reasonably practicable.

We do not share personal data with tutors, partners or service providers simply because they ask for it. A requester's role, authority and the necessity of the information must be checked. Personal data is not sold, rented or disclosed for unrelated commercial purposes.

10. Safeguarding information sharing

Data protection law does not prevent necessary, proportionate and justified sharing to safeguard a child or another person at risk. A concern about harm must never be delayed because a member of staff is uncertain about data protection. The Safeguarding and Child Protection Policy sets out the immediate reporting and escalation route.

Safeguarding information is shared on a need-to-know basis with the DSL, Deputy DSL, children's social care, police, a school, the local authority or another relevant professional where necessary. Parents and carers are normally involved, but they may not be informed before advice or a referral where doing so could increase risk, compromise an investigation or place another person at risk.

The person making or approving a safeguarding disclosure records the factual information shared, the recipient, the purpose, the timing, the lawful basis or condition where relevant, and the reasons for any decision not to tell the individual. Safeguarding records are stored separately from general tuition records with restricted access.

11. Security and access controls

Polygon Pedagogues uses appropriate technical and organisational measures to protect information against loss, misuse, unauthorised access, alteration and accidental disclosure. The level of protection reflects the sensitivity of the data and the risks to the individual, especially where information concerns a child, health, SEND, welfare, safeguarding or DBS checks.

- Use organisation-approved accounts, devices, platforms and storage locations. Personal email accounts, unapproved cloud storage and personal social-media accounts must not be used for business or learner information.
- Use strong unique passwords, multi-factor authentication where available, screen locking, up-to-date software and secure sharing methods. Do not disclose passwords or leave data visible to unauthorised people.
- Keep paper records in a locked location, take only what is needed to a tuition setting, and return or destroy records securely when no longer needed. Do not leave files, session notes or devices in an unattended vehicle.
- Limit access to the minimum people who need information for their role. Access is removed or reviewed when a tutor, contractor or employee changes role or leaves.
- Use careful addressing and recipient checks before sending emails, messages, attachments or links. Sensitive information should be sent by the approved secure route or shared only with a controlled-access link.

No system can remove every risk. A mistake must be reported promptly so it can be contained and assessed. Staff will not be criticised for an honest, timely report made in good faith; failing to report an incident may itself create a serious risk.

12. Retention, deletion and records

We keep personal data only for as long as it is needed for the original purpose, an agreed contract, legal or regulatory duties, safeguarding, accounting, complaint handling or the establishment, exercise or defence of legal claims. Retention is reviewed periodically. Information is then securely deleted, destroyed, anonymised or returned to the controller, as appropriate.

The retention schedule in Appendix A sets out usual periods. It is a guide, not an instruction to destroy records that must be kept longer for safeguarding, a live complaint, legal proceedings, a statutory duty, a commissioner's lawful instruction or another documented reason. Where a period is extended, we record why and review the extension.

We take reasonable steps to keep records accurate. Parents, carers, learners, staff and tutors should tell us promptly if contact details or information material to safe delivery changes. We correct or annotate inaccurate information without delay, taking account of the source, context and any safeguarding implications.

13. Individual rights and requests

Individuals have rights in relation to their personal data, subject to conditions and exemptions. These include the right to be informed, access data, correct inaccurate data, request erasure, restrict

processing, object to certain processing, request portability in some cases, withdraw consent, and challenge a solely automated decision. The availability of a particular right can depend on the lawful basis and the circumstances.

A request may be made to the Privacy Contact using the details on page 2. There is no need to use a particular form or legal wording. We respond without undue delay and normally within one calendar month of receiving a valid request. We may ask for reasonable information to verify identity or authority, particularly where the request concerns a child or sensitive information.

Where a request is complex or numerous, we may extend the response period by up to a further two months. If we do so, we tell the requester within the first month and explain why. We do not charge a fee unless the law permits one, such as for a manifestly unfounded or excessive request.

A parent or carer does not automatically have the right to all of a child's information. We consider the child's age, maturity, capacity, wishes, relationship with the requester, the nature of the data and the child's welfare. We may withhold or redact information where disclosure would reveal another person's data, compromise safeguarding, breach confidence, prejudice an investigation or fall within a lawful exemption.

14. Children, online tuition and recordings

We collect and use children's information fairly, transparently and in a way that recognises their age and understanding. We provide privacy information to parents and carers and, where appropriate, directly to a learner in clear language. We do not knowingly use a child's information for direct marketing.

For online tuition, tutors use approved platforms and organisation-approved accounts. Online session data, chat logs, shared screens or attendance records are handled only for the agreed educational, safeguarding, quality-assurance or technical-support purpose. Staff must not take screenshots or recordings on personal devices or use learner details on personal accounts.

Photographs, videos, audio recordings, learner work, case studies and testimonials are used only where there is a clear purpose, a suitable lawful basis and an appropriate approval process. Optional promotional use normally requires separate, clear consent. Consent can be withdrawn for future use, although it may not be possible to withdraw material already printed or lawfully published before withdrawal.

If an online service relies on a child's consent to process personal data, we obtain and reasonably verify parental authorisation for a child under 13, as required by UK GDPR Article 8. Tuition itself will not depend on a child giving unnecessary privacy consent.

15. Website, cookies and direct marketing

When someone visits our website or contacts us online, we may collect information needed to run the website, respond to an enquiry, protect it from misuse and understand whether it is working effectively. We provide privacy information at or before collection and explain any relevant cookie choices in a cookie notice.

Strictly necessary cookies may be used where needed for the operation or security of the site. Non-essential cookies, analytics or similar technologies are not placed until the visitor has been given clear information and a genuine choice, unless the law allows otherwise. Visitors can change their cookie preferences through the available settings or their browser controls.

We only send electronic marketing where we have a lawful basis and meet PECR requirements. Marketing is directed to adults, not learners. Every marketing message provides a simple method to unsubscribe, and an objection or withdrawal is actioned promptly. We do not use special category or safeguarding information for marketing.

16. Processors and international transfers

We use carefully selected providers for functions such as email, document storage, online tuition, payments, payroll, website hosting and professional support. Before using a provider for personal data, we assess whether it offers suitable confidentiality, security, access-control, breach-reporting, retention and deletion arrangements. Contracts require processors to act only on our documented instructions where applicable.

Some approved providers may store or access information outside the UK. Before making a restricted transfer, we identify the transfer, check whether an adequacy regulation applies and, where needed, put in place an approved transfer mechanism and any supplementary safeguards required by UK data protection law. We will provide relevant information about the safeguard used on request where we are required to do so.

No tutor, staff member or contractor may transfer learner, family, safeguarding, health or recruitment information to a personal account, unapproved app or overseas provider. New systems that may involve international transfers require approval by the Privacy Contact before use.

17. Data breaches and incident management

A personal data breach is a security incident leading to accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data. It can include a lost device or paper file, an email sent to the wrong person, unauthorised access, a compromised account, a phishing incident, a mistaken upload or information discussed where it can be overheard.

Everyone must report a suspected or actual breach immediately to the Privacy Contact. The first priority is to contain the incident safely: for example, recover an email, disable access, change credentials, retrieve a device or secure records. Staff must not attempt to conceal an incident or contact affected people unless authorised to do so.

The Privacy Contact records the facts, assesses the likely risk to people's rights and freedoms, considers containment and remediation, and documents the decision. Where a breach is likely to result in a risk to rights and freedoms, Polygon Pedagogues reports it to the ICO without undue delay and, where feasible, within 72 hours of becoming aware of it. Where the risk is high, we communicate with affected individuals without undue delay unless a lawful exception applies.

All breaches and near misses are logged, including those not reported to the ICO. We use the learning to strengthen controls, training, systems or contracts.

18. DPIAs, training and assurance

A data protection impact assessment (DPIA) is completed before starting processing that is likely to create a high risk to people's rights and freedoms. This may include a new system involving systematic monitoring, large-scale special category data, a significant new form of profiling, high-risk location tracking or new technology used with children.

The DPIA identifies the purpose, necessity, proportionality, risks, controls, residual risk and review arrangements. If high risk cannot be reduced, we seek ICO advice where required before starting the

processing. A DPIA is not a one-off form; it is revisited if the risk, technology, purpose or scale changes.

Staff, tutors and contractors receive data protection expectations at induction and relevant refresher updates. Compliance is monitored through training records, access reviews, record sampling, supplier checks, incident learning and policy review. Directors are responsible for ensuring that resources and governance are sufficient for the services delivered.

19. Complaints and the ICO

Anyone who has a question or concern about privacy, data protection or this policy should contact Hammad Ahmad, Privacy Contact, using director@polygonpedagogues.co.uk or 07555 854902. We will investigate fairly, explain the outcome and take corrective action where appropriate.

If someone remains unhappy, they may complain to the Information Commissioner's Office, the UK regulator for data protection. The ICO can be contacted through ico.org.uk or by telephone on 0303 123 1113. We encourage people to contact us first so that we can try to resolve the matter promptly, but they may approach the ICO at any time.

A privacy complaint that identifies a safeguarding concern, risk to a child or unsafe practice is also handled through the safeguarding and/or whistleblowing route. Privacy and safeguarding processes work together; neither prevents urgent action to protect a child.

20. Review and updating

This policy is reviewed at least annually by the Privacy Contact and approved by the Company Director. It is reviewed sooner if data protection law, ICO guidance, service delivery, systems, commissioned arrangements, risk assessments or a material incident indicates that an earlier review is needed.

Significant changes are communicated to staff, tutors, learners, families and commissioners as appropriate. The current version is made available through Polygon Pedagogues' usual policy route. Previous versions and key decisions are retained where needed to demonstrate accountability.

Appendix A: Retention schedule

These are usual retention periods. They are applied with the review and exception rules in section 12. Information may be kept longer where necessary for safeguarding, legal claims, a statutory duty, a live complaint, insurance, a lawful commissioning requirement or an ongoing investigation.

Category	Retention period and review
Enquiries that do not lead to tuition	Normally 12 months from the last meaningful contact, then securely delete or anonymise.
Tuition, attendance, progress and routine communications	Normally 6 years after the end of the service or contract, then review for secure deletion or anonymisation.
Financial, invoice and tax records	Normally 6 years from the end of the relevant financial year, or longer where tax or accounting law requires.
Safeguarding and child-protection records	Retained separately in line with the Safeguarding and Child Protection Policy, professional advice, local-authority or commissioner requirements and the child's welfare. They are never deleted mechanically where safety or legal obligations require retention.
Complaints, incidents and insurance records	Normally 6 years after closure, unless a longer period is necessary for the issue, policy, legal claim or insurer.
Unsuccessful applicant information	Normally 6 months after the recruitment decision, unless a longer period is necessary for a legal claim or the person asks us to keep the information for future roles.
Staff, tutor and contractor core records	Normally 6 years after the end of employment or engagement, subject to tax, pension, safeguarding, legal or contractual requirements.
DBS certificate information	Certificate information is kept only as long as needed for the recruitment decision and normally no longer than 6 months. A limited record that a check was completed may be retained separately where necessary.
Optional session recordings	Deleted as soon as the agreed educational, quality-assurance or technical-support purpose ends; normally within 30 days unless a documented reason requires another period.
Marketing preferences	Until consent is withdrawn or the person objects, and then retained only as a minimal suppression record where necessary to respect that choice.

Appendix B: Individual-rights request procedure

This procedure applies to a request for access, rectification, erasure, restriction, objection, portability or withdrawal of consent. Requests are handled promptly, respectfully and with particular attention to a child's understanding, welfare and confidentiality.

Stage	Required action
1. Receive and log	Send the request to the Privacy Contact immediately. Record the date, requester, type of right, scope, relevant records and deadline. A request does not need to use the term "GDPR" or "subject access request".
2. Verify identity and authority	Request only the reasonable information needed to confirm identity or authority. For child data, consider the learner's capacity, wishes, relationship with the requester, parental responsibility and welfare. Do not automatically disclose all of a child's data to a parent or carer.
3. Clarify if necessary	Ask for clarification where the request is genuinely unclear, while identifying any information that can still be dealt with without delay. The response deadline is normally one calendar month from receipt of a valid request.
4. Search securely	Conduct a reasonable and proportionate search of approved records, including relevant emails, lesson records, systems and paper files. Do not copy records to personal devices or unapproved locations.
5. Review and redact	Check third-party information, safeguarding risks, confidentiality, ongoing investigations, legal privilege and any applicable exemption. Redact only what is necessary and record the reason.
6. Respond	Provide a clear, accessible response securely and within the legal deadline. Explain any extension, limitation, refusal or fee. Extensions of up to two further months are used only where legally permitted and are notified within the first month.
7. Close and learn	Record the outcome, date sent, records disclosed or amended, rationale, follow-up action and any improvement needed. Retain the request record in line with the retention schedule.

Appendix C: Data breach triage record

Use this record as soon as a suspected or actual personal data breach is reported. The record supports early containment and assessment; it must not delay emergency safeguarding action or reporting a serious incident to the appropriate authority.

Triage field	Record / decision
Incident details	Date and time discovered; reporter; people and systems involved; what happened; personal-data categories; approximate number of people and records affected.
Immediate containment	Actions taken to recover information, stop access, change credentials, recall a message, secure a device, contact a processor or preserve evidence. Record the time and person responsible.
Risk assessment	Consider potential harm, including distress, discrimination, identity fraud, physical safety, safeguarding, reputational, financial or confidentiality impact. Identify whether children or special category data are involved.
ICO notification decision	Record whether the breach is likely to result in a risk to rights and freedoms. If reportable, notify the ICO without undue delay and, where feasible, within 72 hours of awareness. Record any delay and reasons.
Individual notification decision	Record whether the breach is likely to result in a high risk to people's rights and freedoms. If so, notify affected individuals without undue delay unless a lawful exception applies.
Follow-up and closure	Record remediation, support, policy or supplier changes, training, review date, person approving closure and lessons learned. All incidents are logged, including non-reportable near misses.